

UNITED STATES DISTRICT COURT
EASTERN DISTRICT OF NEW YORK

-----X
RICHARD DiBENEDETTO,

Plaintiff,

-against-

DOMINICK BARILLA, HEROLD ALEXIS,
individually and in his capacity as Police Officer,
JOHN DOE 1-3, unidentified police officers
employed by The New York City Police
Department individually and in their capacities as
Police Officers, and THE CITY OF NEW YORK,

Defendants.
-----X

Docket No.:

COMPLAINT

CV 03 4012
JURY TRIAL DEMANDED

GLASSER, J.

AZRACK, J.

RICHARD DiBENEDETTO, by his attorney, PAMELA S. ROTH, alleges the following, upon information and belief, as his Complaint:

NATURE OF THE ACTION

1. This civil rights action arises from the Defendant Police Officers' unlawful, improper arrest, false imprisonment and excessive use of force of Plaintiff on January 17, 2003. RICHARD DiBENEDETTO seeks declaratory relief pursuant to 28 U.S.C. §2201, compensatory and punitive damages for violation of his civil rights pursuant to 42 U.S.C. §§1981, 1983, 1985 and 1986 and an award of costs, disbursements and attorneys fees under 42 U.S.C. §1988.

JURISDICTION

2. This action arises under the Fourth and Fourteenth Amendments to the United States Constitution and 42 U.S.C. §§1981, 1983, 1985 and 1986. This Court has subject matter jurisdiction pursuant to 28 U.S.C. §1331 and 28 U.S.C. §1343(3).

Plaintiff asserts jurisdiction over the CITY OF NEW YORK and The New York City Police Department of all claims in this Court under 28 U.S.C. §1367(a). Plaintiff requests that this Court exercise pendent jurisdiction over those state law claims arising out of the same common nucleus of operative facts, as do Plaintiff's federal claims.

VENUE

3. The venue of the action is appropriate pursuant to 28 U.S.C. § 1391(b).

NOTICE OF CLAIM

4. On or about February 14, 2003, and within 90 days after the claim arose, Plaintiff caused a Notice of Claim to be served upon Defendant, the CITY OF NEW YORK.

5. The Notice of Claim was delivered to the person designated by law as a person to whom such claims may be presented and served.

6. The Notice of Claim was in writing, sworn to by the Plaintiff and contained the name and post office address of the Plaintiff and Plaintiff's attorney, the nature of the claim, the time when, the place where and the manner by which the claim arose, and the damage and injuries claimed to have been sustained.

7. Such Notice of Claim was assigned claim number 2003PI003609 by the Comptroller's office.

8. That on or about June 6, 2003, Plaintiff gave testimony at the request of Defendant, THE CITY OF NEW YORK, and pursuant to Section 50-h of the New York State Municipal Law, before a representative of said Defendant.

9. Defendant, THE CITY OF NEW YORK has failed and refused to pay and/or adjust the claim within the statutory period of time.

10. This action has been commenced within one year and ninety days after the happening of the event upon which the claim is based.

PARTIES

11. At all times relevant herein, Plaintiff RICHARD DiBENEDETTO (hereinafter "DiBENEDETTO") was and is a natural person and citizen of the United States, domiciliary in the State of New York and County of Kings. Plaintiff DiBENEDETTO was and is a 73-year-old blind person and is a retired U.S. Customs Officer.

12. Defendant, THE CITY OF NEW YORK (hereinafter "CITY") is a municipal corporation duly incorporated and existing pursuant to the laws of the State of New York. The City of New York has established and maintains a Department of Police as a constituent department or agency of the Defendant.

13. At all times relevant, Defendant HEROLD ALEXIS (hereinafter "ALEXIS") who is named individually and in his official capacity, was and is a natural person employed by the New York City Police Department as a duly appointed police officer. With respect to the allegations herein, ALEXIS acted under color of state law at all times.

14. At all times relevant, Defendant ALEXIS, was duly appointed and an acting police officer of the New York City Police Department.

15. On January 17, 2003, the individual Defendant was on duty and assigned to the 62nd Precinct and serving under Shield #19081.

16. At all times relevant herein, the Defendants designated JOHN DOE 1-3, and named herein individually and in their official capacities, were and are duly natural

persons employed by the New York City Police Department assigned to the 62nd precinct, County of Kings, City and State of New York as duly appointed police officers. The true names of said Defendants are currently unknown to Plaintiff and the name JOHN DOE is fictitious. With respect to the allegations herein, JOHN DOE 1-3 acted under color of state law at all times.

17. At all times relevant, the individual Defendants were acting under the color of state law.

18. At all relevant times, the individual Defendants were acting pursuant to their authority as New York City Police Department employees. Notwithstanding their unconstitutional and unlawful conduct, the actions of the individual Defendants were taken in the course of their duties and were incidental to their otherwise lawful function as agents, servants and employees of the New York City Police Department.

19. At all relevant times, the individual Defendants were agents, servants and employees acting within the scope of their employment.

20. Alternatively, the individual Defendants were, at all relevant times, acting outside the scope of their employment.

21. At all times relevant herein, Defendant DOMINICK BARILLA (hereinafter "BARILLA") was and is a natural person and citizen of the United States, domiciliary in the State of New York and County of Kings.

FACTS UNDERLYING PLAINTIFF'S CLAIMS FOR RELIEF

22. On January 17, 2003, at approximately 1:30 p.m., Defendant BARILLA was in the Plaintiff's apartment, making landlord/tenant court ordered repairs for violations that existed in said apartment, when Defendant BARILLA was using a six-foot aluminum ladder that he unlawfully took from Plaintiff approximately one month prior to this date.

23. Defendant BARILLA refused to return said aluminum ladder to Plaintiff.

24. Plaintiff thereafter retrieved his aluminum ladder from an empty apartment where Defendant BARILLA had stored it.

25. At that point in time, Defendant BARILLA followed Plaintiff into his apartment and observed that Plaintiff had stored this aluminum ladder in his bedroom.

26. At approximately 1:30 – 3:00 P.M. of that day, while Plaintiff DiBENEDETTO, was lawfully in the premises known as 2150 Bath Avenue, Brooklyn, County of Kings, City and State of New York, inside his apartment and place of residence located on the 3rd floor, when he was unlawfully detained by employees, agents and/or servants of Defendant, City, including Defendant ALEXIS, a Police Officer employed by the City of New York.

27. That said unlawful detention was without justification and beyond the boundaries of reasonableness.

28. Plaintiff DiBENEDETTO, guilty of no crime, was never arrested, never read his Miranda warnings and never questioned, but was handcuffed in the sanctity of his own home, forcibly removed from his home and taken to Coney Island Hospital, in

Brooklyn, New York, and unlawfully detained in that position for a period of at least ten (10) hours.

29. Defendant ALEXIS never charged Plaintiff DiBENEDETTO with any crimes.

30. Plaintiff DiBENEDETTO was unlawfully detained and in police custody by the Defendants even though Plaintiff had committed no crimes and despite that the Defendants had no reasonable basis to believe that Plaintiff DiBENEDETTO had committed any crimes.

31. That Defendant, CITY, through its agents, servants and/or employees, including Defendant ALEXIS, acted in bad faith and without justification in committing the aforesaid detention and unlawful imprisonment of Plaintiff.

32. That Defendant ALEXIS, acted in bad faith and without justification in committing the aforesaid detention and unlawful imprisonment of Plaintiff.

33. That at the time of his unlawful imprisonment, Plaintiff had not committed any illegal act.

34. That at the time of his unlawful imprisonment, Plaintiff had not committed or attempted to commit any crime.

35. That at the time of Plaintiff's unlawful imprisonment, Defendants knew or should have known, through the exercise of proper police procedure and reasonable investigation, that the aforementioned imprisonment was false and without justification.

36. That said false imprisonment caused Plaintiff to suffer severe emotional and psychological distress, anguish, anxiety, fear, humiliation, loss of freedom, legal expenses and damage to his reputation.

37. As a result of the foregoing, Plaintiff DiBENEDETTO demands judgment against Defendants CITY and ALEXIS in a sum of money, which exceeds the jurisdictional limits of all courts of lesser jurisdiction.

FIRST CAUSE OF ACTION

38. Plaintiff repeats and reiterates each and every allegation contained in paragraphs "1" through "37" as if more fully set forth herein.

39. On January 17, 2003 while Plaintiff, DiBENEDETTO, was lawfully in the premises known as 2150 Bath Avenue, 3rd floor, his apartment and residence, in the County of Kings, City and State of New York, he was assaulted and battered by police officers employed by The City of New York without provocation.

40. As a result of the above mentioned unprovoked assault and battery, Plaintiff DiBENEDETTO, was injured, internally and externally, became sick, sore, lame and disabled and was caused to suffer and still suffers severe and permanent injuries and, upon information and belief, will continue to suffer pain and discomfort; and was caused to obtain medical care and attention in an attempt to cure himself of said injuries.

41. As a result of the foregoing, Plaintiff DiBENEDETTO, demands judgment against Defendants CITY and ALEXIS in a sum of money which exceeds the jurisdictional limits of all courts of lesser jurisdiction.

SECOND CAUSE OF ACTION

42. Plaintiff repeats and reiterates each and every allegation contained in paragraphs "1" through "41" as if more fully set forth herein.

43. On January 17, 2003 Defendant BARILLA did maliciously place a 911-telephone call to the 62nd Precinct and file false charges against the Plaintiff DiBENEDETTO, without probable cause and in bad faith.

44. In commencing malicious prosecution, Defendant BARILLA caused Plaintiff DiBENEDETTO, to be falsely detained and falsely imprisoned within the confines of his home on a false charge of possession of stolen property, in that Defendant BARILLA claimed that Plaintiff "stole" Defendant BARILLA'S six-foot aluminum ladder.

45. Plaintiff had not committed any illegal act.

46. Plaintiff had not given Defendants, its agents, servants and/or employees probable cause to believe that he had committed the illegal acts hereinafter complained of.

47. Defendants knew, or should have known through the exercise of reasonable care and proper police procedure, that said investigation was flawed and incomplete.

48. Defendants, their agents, servants and/or employees willfully and wrongfully accused Plaintiff of having committed a crime in violation of the Penal Laws of the State of New York.

49. As a result of the malicious prosecution, Plaintiff suffered, and continues to suffer, substantial and permanent damages.

50. Said malicious prosecution caused Plaintiff DiBENEDETTO, to suffer severe emotional distress, emotional disturbances, humiliation and damage to his reputation, including the stigma of having a criminal record.

51. As a result of the foregoing, Plaintiff DiBENEDETTO, demands judgment against Defendants in a sum of money which exceeds the jurisdictional limits of all the courts of lesser jurisdiction.

THIRD CAUSE OF ACTION

52. Plaintiff repeats and reiterates each and every allegation contained in paragraphs "1" through "51" as if more fully set forth herein.

53. The actions of Defendants heretofore described constitute an unlawful arrest, assault and battery and malicious prosecution, all in violation of Plaintiff's civil rights.

54. Defendants violated Plaintiff's civil rights, including the First, Fourth, Fifth and Fourteenth Amendments to the United States Constitution and 42 U.S.C. Section 1981 and 1983.

55. Defendants deprived Plaintiff of his liberty in violation of their civil rights.

56. Defendants' actions were undertaken under color of law and would not have existed but for said Defendants using their official power.

57. The supervisors and policy making officers of Defendant CITY and its Police Department, as a matter of policy, have failed to take steps to terminate the above detailed practices and have failed to discipline or otherwise properly supervise the individuals engaged in such practices.

58. Defendants have failed to properly or effectively train its employees with regard to proper constitutional and statutory limits on the exercise of their authority, and such failure continues to this day.

59. Defendant CITY, has sanctioned the policy and practices described in the above paragraphs through its deliberate indifference to the effect of said policy upon the constitutional rights of Plaintiff and others similarly situated.

60. Defendant CITY, hired and retained in its employ Defendant ALEXIS and other police officers with knowledge that said police officers had vicious propensities and were, therefore, unfit to be police officers.

61. That Defendants' motivations were in contravention of the U.S. Constitution and the Constitution of the State of New York.

62. As a result of the foregoing, Plaintiff DiBENEDETTO has suffered serious and severe emotional distress, personal injuries and loss to his reputations.

63. As a result of the foregoing, Plaintiff DiBENEDETTO demands judgment against Defendants in a sum of money which exceeds the jurisdictional limits of all the courts of lesser jurisdiction.

FOURTH CAUSE OF ACTION

64. Plaintiff repeats and reiterates each and every allegation contained in paragraphs numbered "1" through "63" above as if fully set forth herein.

65. Defendant CITY, was negligent in hiring and/or retaining employees who it knew or should have known were not fit to be police officers.

66. Defendant CITY, negligently trained or failed to train its agents, servants and/or employees with regard to the proper procedures to follow under the circumstances as they appeared herein; negligently supervised or failed to supervise its agents, servants and/or employees engaged in such practices; negligently disciplined or failed to discipline its agents, servants and/or employees in such practices.

67. Defendant CITY, failed to properly or effectively train, supervise and discipline its agents, servants and/or employees with regard to proper procedure under the circumstances as they appeared herein. Defendant CITY, was negligent in its retention of

its agents, servants and/or employees, including Defendant ALEXIS, who Defendant CITY knew, or in the course of proper and adequate investigation should have known was unfit to continue to hold his positions of authority.

68. Defendant CITY, was negligent in hiring and/or retaining employees who it knew or should have known were not fit to be police officers, including Defendant ALEXIS.

69. As a result of the foregoing, Plaintiff has suffered serious and severe emotional injuries, loss of freedom, legal expenses and loss to reputation.

FIFTH CAUSE OF ACTION

70. Plaintiff repeats and reiterates each and every allegation contained in paragraphs numbered "1" through "69" above as if fully set forth herein.

71. The amount and type of physical force used upon Plaintiff DiBENEDETTO, by Defendants, individually and/or vicariously, by and through their agents, servants and/or employees, was unnecessary, improper, excessive and was not reasonably justified under any circumstances.

72. The amount and type of physical force used upon Plaintiff DiBENEDETTO, by Defendants, individually and/or vicariously, by and through their agents, servants and/or employees demonstrated an intentional, willful, malicious and reckless disregard for and deliberate indifference to Plaintiff's rights and physical well-being.

73. The aforementioned use of force caused immediate injury in the form of pain, suffering, bruises, shock, fright, humiliation, embarrassment and deprivation of Plaintiff's constitutional rights.

74. As a result of the foregoing, Plaintiff has been damaged.

SIXTH CAUSE OF ACTION FOR ASSAULT

75. Plaintiff repeats and reiterates each and every allegation contained in paragraphs numbered "1" through "74" above as if fully set forth herein.

76. By reason of the foregoing, Plaintiff DiBENEDETTO, was placed in apprehension of imminent harmful and offensive contact.

77. As a consequence thereof, Plaintiff DiBENEDETTO has been injured.

SEVENTH CAUSE OF ACTION FOR BATTERY

78. Plaintiff repeats and reiterates each and every allegation contained in paragraphs numbered "1" through "77" above as if fully set forth herein.

79. By reason of the foregoing, Plaintiff DiBENEDETTO, was beat, pushed, punched and shoved intentionally and in a harmful and offensive manner.

80. As a consequence thereof, Plaintiff DiBENEDETTO has been injured.

EIGHTH CAUSE OF ACTION FOR FALSE IMPRISONMENT

81. Plaintiff repeats and reiterates each and every allegation contained in paragraphs numbered "1" through "77" above as if fully set forth herein.

82. By reason of the foregoing, Plaintiff DiBENEDETTO, was intentionally confined without privilege or probable cause to believe a crime had been committed. The Plaintiff was aware of and did not consent to the confinement.

83. As a consequence thereof, Plaintiff DiBENEDETTO has been injured.

NINTH CAUSE OF ACTION FOR
INTENTIONAL INFLECTION OF SEVERE MENTAL DISTRESS

84. Plaintiff repeats and reiterates each and every allegation contained in paragraphs numbered "1" through "83" above as if fully set forth herein.

85. By reason of the foregoing, Defendant ALEXIS and Defendants JOHN DOE intentionally or recklessly engaged in extreme and outrageous conduct measured by the reasonable bounds of decency tolerated by decent society thereby intentionally inflicting mental and emotional distress upon Plaintiff DiBENEDETTO.

86. By reason of the foregoing, Defendant BARILLA intentionally or recklessly engaged in extreme and outrageous conduct measured by the reasonable bounds of decency tolerated by decent society thereby intentionally inflicting mental and emotional distress upon Plaintiff DiBENEDETTO.

87. As a consequence thereof, Plaintiff DiBENEDETTO has been injured.

TENTH CLAIM FOR RELIEF FOR NEGLIGENCE

88. Plaintiff repeats and reiterates each and every allegation contained in paragraphs numbered "1" through "87" above as if fully set forth herein.

89. The acts complained of herein resulted from Defendant CITY, through its agents, servants and employees, breaching its duty properly to train, assign, supervise or discipline the individual Defendants.

90. The CITY'S failure to properly train, assign, supervise or discipline its Police Officers, including the Defendant herein, constitutes acquiescence in and tolerance of ongoing unconstitutional uses of force and created the atmosphere allowing the

individual Defendants to believe that they could inflict brutality and an unlawful arrest with impunity.

91. Defendant CITY, acting through its agents, servants and employees failed and refused to use such care in the performance of its duties as reasonably prudent Police employees would have used under similar circumstances. Defendant CITY, through its agents, servants and employees, negligently, knowingly, recklessly and intentionally breached its duty of reasonable care to the Plaintiff, thereby causing Plaintiff injury.

92. As a consequence thereof, the Plaintiff has been injured.

ELEVENTH CLAIM FOR RELIEF FOR VIOLATING
MR. DiBENEDETTO'S RIGHT TO BE FREE FROM UNREASONABLE
SEARCHES AND SEIZURES UNDER THE FOURTH AND FOURTEENTH
AMENDMENTS TO THE UNITED STATES CONSTITUTION

93. Plaintiff repeats and reiterates each and every allegation contained in paragraphs numbered "1" through "92" above as if fully set forth herein.

94. By the actions described above, the individual Defendants deprived Plaintiff of rights secured by the United States Constitution, including, but not limited to, Plaintiff DiBENEDETTO'S rights to be free and secure in his person *in his home* and to be free from arrest or search, except on probable cause or pursuant to warrant, and his right to be free of unreasonable seizures.

95. As a consequence thereof, the Plaintiff has been injured.

TWELFTH CLAIM FOR RELIEF FOR VIOLATING MR. DiBENEDETTO'S
RIGHT TO BE FREE FROM UNREASONABLE SEARCHES AND SEIZURES
UNDER ARTICLE ONE, SECTION TWELVE OF THE NEW YORK STATE
CONSTITUTION

96. Plaintiff repeats and reiterates each and every allegation contained in paragraphs numbered "1" through "95" above as if fully set forth herein.

97. By the actions described above, the individual Defendants deprived Plaintiff of rights secured by the United States Constitution, including, but not limited to, Plaintiff DiBENEDETTO'S rights to be free and secure in his person and to be free from arrest or search, arrest or search, except on probable cause or pursuant to warrant, and his right to be free of unreasonable seizures *in his home*.

98. As a consequence thereof, the Plaintiff has been injured.

THIRTEENTH CAUSE OF ACTION FOR NEGLIGENT HIRING AND
RETENTION OF EMPLOYMENT SERVICES AGAINST
THE NEW YORK CITY POLICE DEPARTMENT

99. Plaintiff repeats and reiterates each and every allegation contained in paragraphs numbered "1" through "98" above as if fully set forth herein.

100. Upon information and belief, Defendant CITY, through the New York City Police Department owed a duty of care to this Plaintiff to prevent the physical and mental abuse sustained by Plaintiff.

101. Upon information and belief, Defendant CITY, through the New York City Police Department, owed a duty of care to this Plaintiff because under the same or similar circumstances a reasonable, prudent and careful person should have anticipated that an injury to this Plaintiff or to those in a like situation would probably result from this conduct.

102. Upon information and belief, Defendant ALEXIS and Defendants JOHN DOE were unfit and incompetent for this position.

103. Upon information and belief, Defendant CITY'S negligence in hiring and retaining Defendant ALEXIS and Defendants JOHN DOE proximately caused Plaintiff's injuries.

REQUEST FOR RELIEF

WHEREFORE, Plaintiff respectfully requests that judgment be entered as follows:

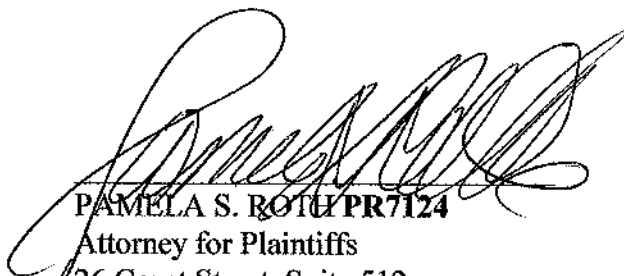
(A) Declaratory relief as follows:

1. As to the first cause of action, a declaration that Plaintiff's right to be free from unreasonable searches and seizures under the Fourth Amendments of the United States Constitution was violated;
2. As to the second cause of action, a declaration that Plaintiff's right to be free from unreasonable and excessive force under the Fourth Amendments of the United States Constitution was violated;
3. A declaration that plaintiff's right to be free from unreasonable searches and seizures under New York State Constitution was violated;
4. A declaration that plaintiff's right to be free from excessive and unreasonable force under the Fourth and Fourteenth Amendments of the United States Constitution was violated;
5. A declaration that plaintiff's right to be free from excessive and unreasonable force under New York State Constitution was violated;

(B) Compensatory damages in an amount of \$ Forty-five Million Dollars (\$ 45,000,000.00);

- (C) By reason of the wanton, willful and malicious character of the conduct complained of herein, punitive damages in an amount to be fixed at trial;
- (D) An award to plaintiff of the costs and disbursements herein;
- (E) Plaintiff requests that this Court order Defendant BARILLA to return the aluminum ladder to Plaintiff, which is Plaintiff's property;
- (E) Such other and further relief as this Court may deem just and proper.

Dated: Brooklyn, New York
August 3, 2003



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